

Judicial Interpretation of Statutes

Given my arguments that courts should respect Congress's work product, it will not surprise you that I find authoritative legislative history useful when I interpret statutes. I start with the premise that the role of the courts is to interpret the law in a way that is faithful to its meaning. The role of the court is not to substitute its judgment or to alter the terms of the statute. Judicial respect for Congress and its lawmaking prerogatives in our constitutional scheme requires no less. For a court, that means using the interpretive materials the legislative branch thinks important to understanding its work. Doing so promotes good government as courts applying such methods are more likely to reach results consistent with legislative meaning. Doing so also facilitates healthy interbranch relations as legislators view courts as seeking to hew to the statute's meaning as passed by Congress.

When statutes are unambiguous, as I have noted earlier, the inquiry for a court generally ends with an examination of the words of the statute.¹ At times, even when the statute is plain on its face, the judge may find legislative history helpful in reinforcing the court's understanding of the words. If, for example, the result suggested by the plain language seems absurd, then a broader inquiry, including consideration of legislative history, may be in order. But if that inquiry leads to the same result, then a court cannot alter it, though, as I discuss in subsequent pages, it can bring the perceived interpretive problem to Congress's attention.

Generally, the interpretive problem arises because the statute is ambiguous.² From the start, the founders understood that legislation would often be unclear and susceptible to differing interpretations. Madison wrote in *The Federalist* No. 37, describing laws in general:

All new laws, though penned with the greatest technical skill, and passed on the fullest and most mature deliberation, are considered as more or less obscure and equivocal, until their meaning be liquidated and ascertained by a series of particular discussions and adjudications. Besides the obscurity arising from the complexity of objects, and the imperfection of the human faculties, the medium through which the conceptions of men are conveyed to each other, adds a fresh embarrassment. . . . [N]o language is so copious as to supply words and phrases for every complex idea, or so correct as not to include many equivocally denoting different ideas. Hence, it must happen that however accurately objects may be discriminated in themselves, and however accurately the discrimination may be considered, the definition of them may be rendered inaccurate by the inaccuracy of the terms in which it is delivered. And this unavoidable inaccuracy must be greater or less, according to the complexity and novelty of the objects defined.³

Scholars have long debated what role the founders conceived the judiciary as having—whether it was to be a faithful agent of Congress or a coequal partner with authority to depart from the words of a statute.⁴ But how judges were to resolve ambiguities was not something that preoccupied the founders, who were concerned with broad principles of governing and left to Congress whether there would even be federal courts other than the Supreme Court. Although

they understood that natural law principles and canons of statutory construction could aid judges, the framers were under no illusion that such tools necessarily dictated particular results.⁵ Judges—members of the Supreme Court, other federal judges if Congress authorized them, and state judges—could fill the interpretive void through the exercise of sound judgment. But the framers did not set forth the precise methodology of how judges would do so.⁶ It was inevitable, therefore, that as ambiguous statutes were crafted, the question of how to interpret them would become important.

It seems to me that the fundamental task for the judge is to determine what Congress was trying to do in passing the law. In other words, the task is to interpret language in light of the statute's purpose(s) as enacted by legislators, with particular attention to those legislative materials that reliably contribute to understanding the statute's meaning.⁷

A. THE PURPOSIVE APPROACH

The dominant mode of statutory interpretation over the past century has been one premised on the view that legislation is a purposive act, and judges should construe statutes to execute that legislative purpose. This approach finds lineage in the sixteenth-century English decision *Heydon's Case*, which summons judges to interpret statutes in a way "as shall suppress the mischief, and advance the remedy."⁸ From this perspective, legislation is the product of a deliberative and informed process. Statutes in this conception have purposes or objectives that are discernible. The task of the judge is to make sense of legislation in a way that is faithful to Congress's purposes. When the text is ambiguous, a court is to provide the meaning that the legislature intended. In that circumstance,

the judge gleans the purpose and policy underlying the legislation and deduces the outcome most consistent with those purposes.

The classic exemplar of this approach is found in the 1892 Supreme Court case of *Church of the Holy Trinity v. United States*.⁹ The statute in question, the Alien Contract Labor Act, made it unlawful to "prepay the transportation, or in any way assist or encourage the importation or migration of any alien or aliens, any foreigner or foreigners, into the United States . . . to perform labor or service of any kind."¹⁰ In arranging for an English minister to come to New York to serve as its rector and pastor, the Church of the Holy Trinity seemingly violated the explicit language of the statutory prohibition. But the Court, in an opinion by Justice David Brewer, held that Congress sought to bar only manual labor, not professional services: "[A] thing may be within the letter of the statute and yet not within the statute, because not within its spirit, nor within the intention of its makers."¹¹ In reaching its conclusion that the law did not apply to the minister's services, the Court went beyond the text of the statute to inquire into underlying purposes. Thus, the Court determined that the statute's title made reference to "labor," not professionals, and that the law was meant to remedy the problem of "great numbers of an ignorant and servile class of foreign laborers."¹² The Court looked to legislative history—to committee hearings, to the House report, which referred to workers "from the lowest social stratum," and to the Senate Labor Committee report, which, in the Court's view, showed that the bill was intended to apply only to manual labor.¹³ It also reasoned that because of the role of religion in this country—"this is a Christian nation,"¹⁴ wrote Justice Brewer—Congress could not have intended to make the hiring of a cleric unlawful. With its inquiry beyond the text into the underlying purposes of the statute and with resort to legislative history,¹⁵ *Holy Trinity* became the paradigmatic example of how federal courts in

the twentieth century interpreted legislation.¹⁶ It would also, in the view of its critics, such as Justice Scalia, become a prime example of supposed deficiencies in the purposive approach.¹⁷

Justice Brewer's reasoning in *Holy Trinity* is not unique to his era. Judge Learned Hand of the U.S. Court of Appeals for the Second Circuit echoed *Holy Trinity*:

All [legislators] have done is to write down certain words which they mean to apply generally to situations of that kind. To apply these literally may either pervert what was plainly their general meaning, or leave undisposed of what there is every reason to suppose they meant to provide for. Thus it is not enough for the judge just to use a dictionary. If he should do no more, he might come out with a result which every sensible man would recognize to be quite the opposite of what was really intended; which would contradict or leave unfulfilled its plain purpose.¹⁸

The champions of the purposive approach, post-World War II, were two Harvard Law School professors, Henry M. Hart, Jr. and Albert M. Sacks, whose compilations of materials on the legal process influenced generations of jurists and scholars.¹⁹ They wrote that a court's role is to interpret the statutes "to carry out the purpose as best it can," subject to the caveat that it does not give the words either "a meaning they will not bear, or . . . a meaning which would violate any established policy of clear statement."²⁰ In contrast to the legal realists of the 1930s, who believed that judges make law, the proponents of the legal process approach viewed judges as agents of the legislature with the ability to discern Congress's purposes and to interpret laws consistent with those purposes. Although the canons of construction can be "useful as reassurances about the meaning which particular configurations of words *may* have in an appropriate

context," they should not be treated as rigid rules that dictate what these configurations "invariably *must* have" regardless of context.²¹ This approach allows for an examination of legislative history so as to better understand the legislation under review. There is much to be said for the view that appreciating the underlying purposes of the legislation allows judges to apply the laws in situations not necessarily anticipated by the enacting Congress. I agree with Justice Breyer, himself a former chief counsel of the Senate Judiciary Committee, that, if courts are faithful to a statute's objectives, Congress, the representative of the people, will view the third branch as a cooperating partner—a perspective that can only promote the fair and effective administration of justice.²²

Critics of the purposive approach argue that because the laws of Congress are often ambiguous, it is not possible to say with any certainty what the purposes of the legislature are. There may be many purposes, with ambiguity permitting legislators of differing views to vote for a bill, each interpreting it in ways to support their differing conceptions. In the words of Kenneth Shepsle, "Congress [i]s a '[t]hey,' [of 535 legislators] [n]ot an '[i]t,'" and legislative intent is an oxymoron.²³ Legislation—particularly large omnibus bills passed with great speed at the end of a legislative session—may at points be contradictory. As to these large omnibus measures that contain a hodgepodge of unrelated measures, a legislator may vote for the whole bill because she supports certain parts, even though she would vote against other parts if considered separately. In these circumstances, critics of the purposive approach contend that it blinks reality to assert that legislation has knowable purposes that courts can identify.

That legislation is the institutional product of a collection of individuals with a variety of motives and perspectives should not foreclose the effort to discern purposes. Just as intentions are attributed

to other large entities—such as local governments, trade associations, and businesses—so too do linguistic protocols, everyday mores, and context facilitate an inquiry into what Congress intended to do when statutory text is vague or ambiguous. At times, it is difficult to ascertain purposes, and the search for purpose as to particular statutes may be elusive. But to jettison the inquiry altogether, because of the difficulty in particular cases, means that judges will interpret statutes unmoored from the reality of the legislative process and what the legislators were seeking to do.

B. THE USES OF LEGISLATIVE HISTORY

I have found legislative history to be helpful in a number of cases on which I have worked on the Second Circuit, including some I discuss in the next chapter. It can aid in the search for meaning when a statute is silent or unclear about a contested issue. Legislative history can be especially valuable when construing a specialized term or phrase in statutes dealing with complex matters beyond the ordinary ken of the judge. In that circumstance, it can aid the judge in understanding how the legislation's congressional proponents wanted the statute to work, what problems they sought to address, what purposes they sought to achieve, and what methods they employed to secure those purposes.²⁴ Legislative history can be helpful, Justice John Paul Stevens commented, "when an exclusive focus on text seems to convey an incoherent message, but other reliable evidence clarifies the statute and avoids the apparent incoherence."²⁵ And, at times, as I indicated earlier, authoritative legislative history can be useful, even when the meaning can be discerned from the statute's language, to reinforce or to confirm a court's sense of the text.²⁶

When courts construe statutes in ways that respect what legislators consider their work product, the judiciary not only is more likely to reach the correct result, but also promotes comity with the first branch of government. It is a bipartisan institutional perspective within Congress that courts should consider reliable legislative history and that failing to do so impugns Congress's workways. Several years ago, then-Congressman Robert W. Kastenmeier (D-WI), the longtime chair of the House Judiciary Subcommittee on Courts, put it this way: Disregarding legislative history "is an assault on the integrity of the legislative process."²⁷ Senators Orrin Hatch (R-UT) and Charles E. Grassley (R-IA) as Republican chairs or ranking members of the Judiciary Committee, and Senator Patrick Leahy (D-VT), as Democratic chair or ranking member, have consistently supported judicial resort to legislative history, as did the late Arlen Specter (as R-PA) and then-Senator Joseph R. Biden, Jr. (D-DE). Indeed, senators often press that view on judicial nominees at confirmation hearings.

Senator Grassley, currently ranking member of the Judiciary Committee, has long defended legislative history. In 1986, at the confirmation hearing of Antonin Scalia for Supreme Court Justice, he expressed concern about the then-D.C. Circuit judge's "pretty doggone strong language" in his opposition to legislative history: "[A]s one who has served in Congress for 12 years, legislative history is very important to those of us here who want further detailed expression of that legislative intent."²⁸ Nearly two decades later, Senator Grassley pressed nominee John G. Roberts, Jr., with a series of questions about legislative history, noting:

Justice Scalia is of the opinion that most expressions of legislative history, like Committee reports or statements by the Senators on the floor, or in the House, are not entitled to great

weight because they are unreliable indicators of legislative intent. Presumably, Justice Scalia believes that if the members don't actually write a report or don't actually vote on a report, then there is no need to defer to this expression of congressional intent.

Now, obviously, I have great regard for Justice Scalia, his intellect and legal reasoning. But, of course, as I told you in my office, I don't really agree with his position.²⁹

Senator Hatch, who for many years was chair or ranking member of the Senate Judiciary Committee, commented that "[t]ext without context often invites confusion and judicial adventurism."³⁰ As an example of how legislative history might be useful, he pointed to a bail law that did not incorporate a reference to the Speedy Trial Act, but where "[t]he legislative history...imparted the additional information necessary to preserve the basic goal of pretrial detention."³¹ Then-Senator Specter of Pennsylvania stated: "I think when justices disregard that kind of material [legislative history], it is just another way to write their own law...."³²

Consistent with the views of their principals, legislative staffers attest to the importance of legislative history. A central finding of the recent study by Abbe R. Gluck and Lisa Schultz Bressman—the most comprehensive examination of the perspectives of legislative staffs about statutory interpretation ever undertaken—is that "legislative history was emphatically viewed by almost all of our respondents—Republicans and Democrats, majority and minority, alike—as the *most important* drafting and interpretive tool apart from text."³³ The study found that members and their staffs in fact focus more on legislative history than on text when considering and voting on bills; indeed, they often do not read the text of a bill or do not read it closely, but rather pay more attention to the legislative

history to understand the bill's purposes and the meaning of particular statutory phrases. Moreover, the survey confirmed that within Congress, committee-crafted legislative history is not viewed as an improper delegation of responsibility to staff, as staffers who draft the legislative history are closely tied to the members for whom they work. Gluck and Bressman also confirmed empirically that legislative history has a wide variety of purposes and audiences beyond courts. It is, as I explained earlier, a tool of congressional oversight of agencies. It is a means of intra-congressional communication to explain in ordinary terms what the bill does, and to provide institutional memory when staffers amend older legislation. Legislative history is also a means of communicating to interested groups and the public. And it is a vehicle for details that drafters think are inappropriate for statutory text because of the sense that too much detail does not belong in the text.³⁴

If judges exclude legislative history they will eliminate a useful source of information about the law's meaning. Legislative history is not the law, but can help us understand what the law means. Depriving judges of what appeared to animate legislators risks having courts interpret the legislation in ways that the legislators did not intend, replacing reasoned analysis of what Congress was trying to do with subjective preferences. The danger, as Justice Breyer observed, is that a court will "divorce[] law from life."³⁵ Those who maintain that it is difficult to discern the purposes of 535 legislators should welcome the use of legislative history; eliminating authoritative materials such as committee reports and conference committee reports as interpretive tools—which can provide valuable guides in understanding purpose—make the interpretive task not only that much harder, but also more prone to incorrect outcomes. Earlier, I explained how those who deal most frequently with statutes—that is, agencies—look to legislative history so as to be faithful to

Congress's meaning. Courts should be no different in examining pre-enactment legislative sources that assist the interpretive task.

C. THE TEXTUALIST CRITIQUE

The approach I advocate has not gone unchallenged. Indeed, within the judiciary, a sustained attack on the use of legislative history began in the 1980s, largely led by Antonin Scalia, first as a D.C. Circuit judge and then as a Supreme Court justice. In a 1993 Supreme Court concurring opinion, he wrote: "We are governed by laws, not by the intentions of legislators.... 'The law as it passed is the will of the majority of both houses, and the only mode in which that will is spoken is in the act itself....'"³⁶ Justice Scalia is of the view that because legislation often consists of a brew of deals, compromises, and inconsistencies, the search for coherent purpose is elusive. Thus, it is the statute's final wording that must prevail, he has argued, over "unenacted legislative intent."³⁷ Textualism, as Justice Scalia has championed it, involves an assault on the dependence on any extratextual source in determining statutory meaning. Legislative history became a central target. "We are a Government of laws, not of committee reports," he asserted.³⁸ In another case, he explained:

I am confident that only a small proportion of the Members of Congress read either one of the Committee Reports in question... [and] that very few of those who did read them set off for the nearest law library to check out what was actually said in the four cases at issue (or in the more than 50 other cases cited by the House and Senate Reports).... As anyone familiar with modern-day drafting of congressional committee reports is well aware, the

references to the cases were inserted, at best by a committee staff member on his or her own initiative, and at worst by a committee staff member at the suggestion of a lawyer-lobbyist; and the purpose of those references was not primarily to inform the Members of Congress what the bill meant... but rather to influence judicial construction. What a heady feeling it must be for a young staffer, to know that his or her citation of obscure district court cases can transform them into the law of the land, thereafter dutifully to be observed by the Supreme Court itself.³⁹

This textualist critique of legislative history has at least four parts. The first, which is premised on the Constitution, is the idea that the only legitimate law is text that both chambers and the President have approved (or passed by a two-thirds vote of Congress over the President's veto). This view looks in part for support from *INS v. Chadha*. In that case, the Supreme Court held legislative vetoes unconstitutional because they evaded procedures of bicameralism, whereby a bill cannot become law without both House and Senate approval, and presentment, whereby all bills that make it through Congress have to be presented to the President for his signature. This emphasis on the twin requirements of bicameralism and presentment is part of the textualist critique. Because (so the narrative goes) legislators do not review legislative history, that history lacks authority. Legislative history materials, Justice Scalia stated, are "frail substitutes for bicameral vote upon the text of a law and its presentment to the President. It is at best dangerous to assume that all the necessary participants in the law-enactment process are acting upon the same unexpressed assumptions."⁴⁰ A system that relies on committee reports delegates power to unelected, uncontrolled staff at the expense of the whole chamber, so textualists claim.⁴¹ The use of legislative history, the argument continues, violates the

constitutional rule prohibiting congressional self-delegation—the idea that Congress cannot delegate its lawmaking authority to its committees as its agent.⁴² Committee reports should not be looked to when interpreting the statute, and neither should materials such as floor debates and statements in the Congressional Record. In the view of legislative history critics, apart from the fact that statements in the Congressional Record are not the laws themselves, the Congressional Record is suspect as a guide to legislative meaning because it does not differentiate between remarks made by those who were involved in crafting the legislation—such as bill managers—and those who were not; it can include statements inserted by legislators who were not present on the floor; and legislators can revise for publication statements that colleagues heard them make on the floor.

Second, critics of legislative history argue that its use impermissibly increases the discretion of judges to roam through the wide range of often inconsistent materials and rely on those that suit their position.⁴³ By so choosing, critics charge, judges substitute their policy preferences for those of elected officials, with whom such a choice properly resides.

A third component of the assault on legislative history is grounded in the idea that legislators will be compelled to write statutes with more precision if they know that courts cannot consult such materials.

Fourth, underlying the criticism of legislative history is a decidedly negative conception of the legislative process, based on the “public choice” school, which employs principles of market economics to explain decisionmaking.⁴⁴ Like many schools, its scholars are not all of one mind and cannot be simply characterized.⁴⁵ Generally, though, the public choice school characterizes the legislative process as fueled by rational, egoistic, utility-maximizing legislators

whose primary objective is to be re-elected. From this perspective, legislators enact laws that tend, at the expense of the public good and efficiency, to transfer wealth to special interest groups that lobby the legislature. Evading responsibility—so the narrative continues—members of Congress pass unclear statutes, leaving it to administrators and courts to resolve unsettled issues.⁴⁶ Laws benefiting society will be few and far between because of the collective action problem. As Mancur Olson put it, “rational, self-interested individuals will not act to achieve their common . . . interests”⁴⁷ by lobbying for legislation that benefits the general public because the benefits being sought are collective to the group as a whole; thus the rational individual is content to be a free rider. In this view, echoing in part Madison’s concern in *The Federalist* No. 10, interest groups are unlikely to arise and press legislators to enact “public interest” legislation.

Sharply different from the “public interest” conception, this vision of the legislature is grim.⁴⁸ On this conception, legislators—motivated by the goal of reelection—evade choices on critical issues that could provoke opposition from well-organized groups. They do not develop well-conceived legislation, preferring instead to satisfy interest groups through ad hoc bargaining. This view is manifested in Justice Scalia’s lament about committee report language written by lawyer-lobbyists at the behest of client groups, and about committees that serve client interests rather than Congress itself, using committee reports to memorialize transactions about which the whole Congress is not aware.⁴⁹

Over time, the textualist critique has become more nuanced. John Manning, who has contributed many distinguished writings in the field, observed that textualists have focused more on formal constitutional arguments such as bicameralism, presentment, and nondelegation. While they continue to look askance at legislative

history, they are less inclined to draw upon public choice theory. Rather, they emphasize the importance of judges' "respect[ing] the terms of an enacted text *when its semantic meaning is clear*, even if it seems contrary to the statute's apparent *overall purpose*."⁵⁰ They take as given the bargaining in the legislative process—whatever the motivations of legislators—and argue that adherence to text is appropriate in part because of legislative compromises, which may make the search for coherent purpose a fool's errand. In interpreting statutes, textualists seek to understand language in a linguistic context, looking to dictionary definitions,⁵¹ colloquial meanings, the technical definitions of terms of art, and background conventions associated with certain phrases or types of legislation.⁵²

Although I agree that dictionaries can be helpful—especially when dealing with a specialized term, or a term of art, or a word's usage at the time of the law's enactment—more often than not, the interpretive challenge comes from the ambiguity of the word as situated in a sentence. In that situation, dictionaries can hardly be definitive. In any event, if it is appropriate to look to a dictionary as an extraneous source, it is not at all clear why legislative history—in its reliable forms—should be excluded. More fundamentally, congressional drafting practices suggest caution with regard to excessive reliance on dictionaries: The Gluck-Bressman survey of legislative staff indicated that although they were cognizant of the judicial trend, "[m]ore than 50% of our respondents said that dictionaries are never or rarely used when drafting."⁵³ Legislative drafters often create their own definitional sections in statutes. Yet, as James Brudney and Lawrence Baum have observed, dictionary definitions may trump statutory definitions in Supreme Court opinions.⁵⁴ Indeed, they argue there is more cherry-picking of dictionary sources than of legislative history in those opinions.⁵⁵

D. TEXTUALISTS' IMPACT

There is a substantial literature, to which I have offered some writings, that questions the underlying factual assertions for textualists' sweeping propositions.⁵⁶ That textualists have moved away from public choice theory is understandable, given the inability of that theory to capture the complexity of the decisionmaking process. The calculus of Congress cannot be reduced only to the idea that interest groups dictate the behavior, votes, and agenda of legislators eager for the financial support necessary for reelection.⁵⁷ A variety of case studies track the passage of legislation where interest group involvement was not decisive.⁵⁸ And where groups have had a role, their interests, as James Q. Wilson has written, have not necessarily been economic.⁵⁹ Moreover, some legislation predated interest groups' activity and, indeed, led to the creation of particular interest groups. One example is section 504 of the Rehabilitation Act of 1973, outlawing discrimination against those with disabilities in programs receiving federal aid or assistance—a measure that was not the product of interest group activity, but after whose passage existing groups increased their efforts and new groups were born.⁶⁰ And certainly, in spite of the opposition of large powerful economic interests, Congress has enacted a variety of legislation. Examples include laws having to do with airline and trucking deregulation and measures addressing health, environmental, and safety concerns.⁶¹

Surely, legislators are concerned about reelection,⁶² and public choice theory quite usefully draws attention to how incentives can affect behavior. It would be naive to think that legislators do not consider how interest groups can affect, positively or negatively, their hopes to return to office. But legislators also have policy objectives that cannot simply be understood as interest group driven. Even where interest groups have a substantial impact on the

legislative process, it does not follow that their goals are against the public interest.⁶³ Legislation that benefits the personal interests of an interest group may, depending on the measure, also benefit the wider public.

Textualists have appropriately identified misuses and manipulation of legislative history. Without doubt, language is on occasion put into committee reports unnoticed by the whole legislative chamber or even by members of relevant committees. Martin D. Ginsburg, for example, pointed to such excesses in the area of tax legislation,⁶⁴ and Senator Moynihan once expressed concern that report language in one particular piece of legislation was not reviewed by the legislators on the relevant committee.⁶⁵ By putting a spotlight on legislative history, the textualist critique has had some effect on individual legislators. Then-Representative Barney Frank (D-MA) reportedly ward off an effort to insert compromise language in a committee report rather than in the bill itself.⁶⁶ He did so with two words: "Justice Scalia."⁶⁷ Although pure textualists can claim among Supreme Court Justices only Antonin Scalia and Clarence Thomas as faithful supporters,⁶⁸ the textualist critique has had an undeniable impact. Today, it is commonplace for a statutory opinion of a federal court to state: "where the statutory language provides a clear answer, it [statutory interpretation] ends there as well."⁶⁹

Gone are the days when a Supreme Court would declare, as it did in 1971:

The legislative history of both § 4(f) of the Department of Transportation Act, 49 U.S.C. § 1653(f) (1964 ed., Supp. V), and § 138 of the Federal-Aid Highway Act, 23 U.S.C. § 138 (1964 ed., Supp. V), is ambiguous.... Because of this ambiguity, it is clear that we must look primarily to the statutes themselves to find the legislative intent.⁷⁰

By 2005, Justice Anthony Kennedy, in an opinion of the Court, to which Justices Stevens, Sandra Day O'Connor, Ginsburg, and Breyer dissented, would exclaim:

Extrinsic materials have a role in statutory interpretation only to the extent they shed a reliable light on the enacting Legislature's understanding of otherwise ambiguous terms. Not all extrinsic materials are reliable sources of insight into legislative understandings...and legislative history in particular is vulnerable to two serious criticisms. First, [it is] often murky, ambiguous, and contradictory....[It often becomes, in] Judge Leventhal's memorable phrase, an exercise in "looking over a crowd and picking out your friends."... Second, judicial reliance on legislative materials like committee reports, which are not themselves subject to the requirements of Article I, may give unrepresentative committee members—or, worse yet, unelected staffers and lobbyists—both the power and the incentive to attempt strategic manipulations of legislative history to secure results they were unable to achieve through the statutory text.⁷¹

While judges still use legislative history,⁷² they tend to give it more of a supporting rather than a leading role in statutory interpretation.⁷³ In one such case, Justice Sotomayor stated that "although we need not rely on legislative history given the text's clarity, we note that the history only supports our interpretation of 'individual' [the statutory term at issue]."⁷⁴ In another, Justice Kagan, writing for a unanimous court, began by focusing on the text, whose "clarity" could "end" the Court's consideration; looked next at the context of the statute to "put[] an exclamation point on this textual conclusion"; and only then assessed legislative history. As she wrote: "Finally, for those who consider legislative

history useful, the key Senate Report . . . provides one last piece of corroborating evidence.”⁷⁵ Courts tend to approach legislative history with what Justice Ginsburg termed “hopeful skepticism.”⁷⁶

E. A CRITIQUE OF TEXTUALISM

Although textualists have helpfully shown some of the pitfalls of legislative history, they have not made the case for its exclusion. I question their view that restricting interpretation to the text will lead to more responsible legislating and more clearly drafted laws. Certainly, textual ambiguity may be a consequence of carelessly drafted laws. And sometimes rather than confront difficult problems in text, legislative drafters may address them in committee reports. But ambiguity is often the product of the simple fact that the issues are difficult and Congress, having identified the general problem, leaves it to an agency or court to determine how best to address the problem in its specifics.⁷⁷ As Richard Stewart observed: “The demands on Congress’s agenda far exceed its capacity to make collective decisions.”⁷⁸ Given policy complexities, it is unreasonable to expect Congress to anticipate all interpretive questions that may present themselves in the future.⁷⁹ Inadvertence as a result of time pressures may be the explanation, especially when rapidly drafted amendments are added to larger bills. In other circumstances, it may be that the sponsors were unable or deliberately chose not to craft legislation that was both precise and enactable. The language may be imprecise in order to facilitate the bill’s passage, such that even competing interests can find language in the bill that supports their positions. Ambiguity, as Herbert Kaufman remarked, can be the solvent of disagreement, at least temporarily.⁸⁰ In these circumstances, textualists should be under no illusions that decrying ambiguity will change legislative behavior.⁸¹

As to constraining judicial preferences, it seems to me that excluding legislative history when interpreting ambiguous statutes is just as likely to expand a judge's discretion as reduce it. When a statute is unambiguous, resorting to legislative history is generally not necessary; in that circumstance, the inquiry ordinarily ends. But when a statute is ambiguous, barring legislative history leaves a judge only with words that could be interpreted in a variety of ways without contextual guidance as to what legislators may have thought. Lacking such guidance increases the probability that a judge will construe a law in a manner that the legislators did not intend. It is seemingly inconsistent that textualists, who look to such extratextual materials as the records of the Constitutional Convention and *The Federalist* in interpreting the Constitution, would look askance at the use of legislative history sources when interpreting legislation. As scholars have pointed out, the records of the Constitutional Convention consulted by textualists are themselves incomplete.⁸²

The contention that the use of legislative history violates the constitutional proscription against self-delegation—whereby Congress purportedly cedes lawmaking authority to its committees—is premised on a mistaken view of the legislative process. Legislative history accompanying proposed legislation precedes legislative enactment. When Congress passes a law, it can be said to incorporate the materials that it, or at least the law's principal sponsors (and others who worked to secure enactment), deem useful in interpreting the law.⁸³ After all, Article I of the Constitution gives each chamber the authority to set its own procedures for the introduction, consideration, and approval of bills. And each chamber has established its own rules and practices⁸⁴ governing lawmaking—some favoring certain proceedings over others—establishing “a resultant hierarchy of internal communications.”⁸⁵ Those rules and procedures give particular legislators,

such as committee chairs, floor managers, and party leaders, substantial control over the process by which legislation is enacted. Communications from such members as to the meaning of proposed statutes can provide reliable signals to the whole chamber. And, as I noted earlier, members and their staffs, who well understand that maintaining credibility with colleagues is essential to effective legislating, have every incentive to represent accurately the meaning of proposed statutes to colleagues, as written and discussed in legislative history. For their part, legislative staffers, who serve at the pleasure of the members, generally seek to serve their principals as faithful agents; they well recognize that their tenure will be short-lived if they undertake actions that do not reflect what their principals want, or pursue agendas independent of or contrary to those of their principals.⁸⁶

The paucity of judicial knowledge about congressional rules and processes relating to the legislative process, as Victoria Nourse has commented, is striking; that lack of knowledge can impede the judiciary's efforts to interpret statutes.⁸⁷ As she writes: "If nothing else, as a matter of legislative supremacy, if courts must respect Congress's decisions, then judges—and administrators, where it may matter more—must begin the process of understanding Congress's methods."⁸⁸ The empirical findings of the Gluck-Bressman study⁸⁹ that in Congress legislative history is the most important drafting and interpretive instrument apart from text, that members and staffs rely more on legislative history than the text of bills, that the committee system is not an improper delegation of authority, that dictionaries are not often used, and that canons are of limited utility all suggest quite powerfully this conclusion: when courts fail to appreciate the dynamics of the legislative process, they undermine their capacity to reach sound judicial decisions as to legislative meaning.